

|   |                                                             |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
|---|-------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|   |                                                             | <p>On 10/16/23, Plaintiff voluntarily dismissed Chaparral with prejudice. Therefore, the motion appears to be moot.</p> <p>Moreover, to the extent Plaintiff still intends to conduct a deposition of Chaparral's person most qualified, Plaintiff must now serve a subpoena for deposition testimony to Chaparral because Chaparral is no longer a party to the action. (Code Civ. Proc. § 2025.280(a)-(b) [deposition notice effective to require party to appear for deposition, but testimony of nonparty deponent requires deposition subpoena].)</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 9 | 30-2022-01262550<br><br>Portfolioiq vs.<br>Tradability, LLC | <p><b>Motion for Leave to Intervene</b></p> <p>The Motion to Intervene by Proposed Plaintiffs in Intervention Tracy Kinder and Roxanna Guinan (Movants) is DENIED.</p> <p>Movants' Request for Judicial Notice of the complaint in <i>Kinder v. Gallant</i>, OCSC No. 2022-01282519 (<i>Kinder</i> case) is granted. Defendants Diallo and Tradability's Request for Judicial Notice of the Complaint, Cross-Complaint, and 5/12/23 Order in the <i>Kinder</i> case is also granted.</p> <p>Code of Civil Procedure section 387 provides for mandatory and permissive intervention. Section 387, subdivision (d)(1) states the requirements for mandatory intervention:</p> <p>“(d)(1) The court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if either of the following conditions is satisfied:</p> <p>(A) A provision of law confers an unconditional right to intervene.</p> <p>(B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties.”</p> <p>Section 387, subdivision (d)(2) provides for permissive intervention:</p> <p>“(2) The court may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both.”</p> |